

TENTATIVE RULINGS for LAW and MOTION

March 3, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: Arfsten v. Woodland Joint Unified School District
Case No. CV2025-1304

Hearing Date: March 3, 2026 **Department Fourteen** **9:00 a.m.**

Motion for reconsideration:

Plaintiff Sherri Arfsten's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff's motion for reconsideration of January 21, 2026, Order is **DENIED**. (Code Civ. Proc, § 1008, subd. (a).) Plaintiff fails to show new or different facts, circumstances, or law. (*Mink v. Superior Court* (1992) 2 Cal.App.4th 1338, 1342; *In re Marriage of Herr* (2009) 174 Cal.App.4th 1463, 1468 [facts of which a party seeking reconsideration was aware at the time of the original ruling are not new or different facts to support a trial court's grant of reconsideration]; see *Pazderka v. Caballeros Dimas Alang, Inc.* (1998) 62 Cal.App.4th 658, 670; *Graham v. Hansen* (1982) 128 Cal.App.3d 965, 971.) The Court finds that:

- Plaintiff fails to provide any argument, much less legal authority, regarding the claimed procedural defects. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73 – 74 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].) Furthermore, plaintiff admits she raised these procedural defects in her opposition to defendant Woodland Joint Unified School District's ("WJUSD") demurrer to plaintiff's second amended complaint. (*In re Marriage of Herr, supra*, 174 Cal.App.4th at p. 1468; plaintiff's MPA, p. 2, l. 10.)
- There are no due process concerns because plaintiff was advised in the Court's tentative ruling on WJUSD's demurrer to plaintiff's second amended complaint of the Court's intent to strike causes of action two through four and six. (See *In re Marriage of Carlsson* (2008) 163 Cal.App.4th 281, 290-291; Tentative Ruling, adopted on January 21, 2026.)
- On November 12, 2025, the Court adopted the tentative ruling sustaining WJUSD's demurrer to plaintiff's first amended complaint on the issue of compliance with the Government Claims Act, which applied to all of the causes of action therein. Thus, the issue of compliance was properly before the Court on WJUSD's demurrer to plaintiff's second amended complaint as to all [remaining] causes of action, including the fifth cause of action for intentional infliction of emotional distress. (Minute Order, dated November 12, 2025; Minute Order, dated January 21, 2026.)

- The notice/service defects raised by plaintiff were admittedly presented in plaintiff's opposition to defendant WJUSD's demurrer. (*In re Marriage of Herr, supra*, 174 Cal.App.4th at p. 1468; plaintiff's MPA, p. 4, l. 5.) Moreover, WJUSD's moving and reply documents were timely filed and served.
- Plaintiff fails to provide any relevant legal authority that malice of a public employee is a basis for an exemption to the claims presentation requirement of the Government Claims Act. (Cal. Rules of Court, rule 3.1113(b); *Quantum Cooking Concepts, Inc., supra*, 197 Cal.App.4th at p. 934; *Hood, supra*, 43 Cal.App.5th at pp. 73 – 74.)

Additionally, the Court finds that even if plaintiff presented new or different facts, circumstances, or law, given plaintiff failed to request oral argument on the Court's tentative ruling on WJUSD's demurrer to plaintiff's second amended complaint, plaintiff fails to show a satisfactory explanation for failing to produce evidence at an earlier time. (*Mink, supra*, 2 Cal.App.4th at p. 1342; see Minute Order, dated January 21, 2026.)

The case management conference set for March 16, 2026, is **VACATED**.

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave to file third amended complaint:

Plaintiff Sherri Arfsten's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Plaintiff's motion for leave to file third amended complaint is **DENIED**. (Cal. Rules of Court, rule 3.1324; Code Civ. Proc., § 473, subd. (a)(1).) Based on the Court's ruling on plaintiff's motion for reconsideration of January 21, 2026, Order, there is no operative pleading to amend.

The notice of motion provides notice of this Court's tentative ruling system; however, the notice does not contain the requisite language pursuant to Local Rule 11.2(b) (as amended, eff. Jan. 1, 2021). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Dettling v. McAravy**
Case No. CV2025-0205

Hearing Date: **March 3, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Linda K. Dettling's motion for leave to file an amended complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576.) First, plaintiff did not file a proof of service at least five court days before the hearing, showing that defendants were properly served with the moving papers. (Cal. Rules of Court, rule 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).) Second, plaintiff does not state what allegations are proposed to be added and/or deleted and where, by paragraph and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Lastly, the supporting declaration fails to specify when facts giving rise to the amendment were discovered. (Cal. Rules of Court, rule 3.1324(b)(3).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **MCG Land and Farms, LLC v. Steele**
Case No. CV2025-2469

Hearing Date: **March 3, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendants Christopher Steele and Capay Valley Ranches, Inc.'s demurrer is **CONTINUED** to **March 26, 2026**, at 9:00 a.m. in Department Eleven.

TENTATIVE RULING

Case: Soliven v. Morales
Case No. CV2025-2329

Hearing Date: March 3, 2026 **Department Eleven** **9:00 a.m.**

Demurrer:

Defendant Felix G. Morales' request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendant's demurrer as to the first cause of action for partition of real property by sale is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the first amended complaint ("FAC") does not state facts sufficient for this cause of action. (*Wallace v. Daley* (1990) 220 Cal.App.3d 1028, 1035; *Regalado v. Regalado* (1961) 198 Cal.App.2d 549, 553-554; Code Civ. Proc., §§ 872.140, 874.010; Defendant's RJN, Exhibit B ["FAC"], ¶¶ 10-19.)

Defendant's demurrer as to the second cause of action for declaratory relief is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606; Code Civ. Proc., § 1060; FAC, ¶¶ 10 & 20-24.) The FAC alleges an actual controversy between the parties. (FAC, ¶ 10, 15-16, 21, & 24.)

Defendant's demurrer as to the third cause of action for breach of oral contract is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the FAC does not state facts sufficient for this cause of action. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; FAC, ¶¶ 10, 15-16, & 25-28.) While defendant asserts that the FAC fails to allege defendant breached the parties' agreement, the Court finds that the FAC contains sufficient allegations as to this element. (FAC, ¶¶ 15-16 & 26.)

Defendant's demurrer as to the fourth cause of action for constructive trust is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) "A constructive trust...is an equitable *remedy*, not a substantive claim for relief." (*PCO, Inc. v. Christensen, Miller, Fink, Jacobs, Glaser, Weil & Shapiro, LLP* (2007) 150 Cal.App.4th 384, 398, emphasis in original; see also *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 76; FAC, ¶¶ 29-37.) This is not a cause of action, but the Court grants leave to amend to allow plaintiff to add constructive trust as a sought remedy. (See FAC, Prayer for Relief.)

Defendant's demurrer as to the entire FAC based on the sham pleading doctrine is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint and the FAC contain contradictory allegations, such that the sham pleading doctrine applies. (*Thomas v. Regents of University of California* (2023) 97 Cal.App.5th 587, 637, fn. 22; see Defendant's RJN, Exhibit A; FAC.)

Plaintiff Memorie M. Soliven may amend the FAC by no later than **March 13, 2026**. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Defendant's motion to strike portions of plaintiff's FAC is **DENIED**. (Code Civ. Proc., §§ 435, 436.) First, as defendant's request to strike paragraphs 12 and 15, defendant has failed to establish that these allegations are irrelevant or improper as to plaintiff's entire action. (Code Civ. Proc., § 436, subd. (a); see, e.g., *Richman*, *supra*, 224 Cal.App.4th at p. 1186.) To the extent that defendant asks the Court to strike "similar" allegations to those in paragraphs 12 and 15, the Court finds that such a request is improper under California Rules of Court, rule 3.1322(a). (See Notice of Motion, p. 2.) Second, as to paragraph 18(b), this allegation does not specifically reference the parties' settlement negotiations and therefore, defendant has failed to show that it is improper. (See Evid. Code, § 1152.) Third, as to paragraph 32, defendant has failed to establish this allegation contradicts the allegations in plaintiff's complaint. (See FAC, ¶ 13; see generally *Squibb v. Squibb* (1961) 190 Cal.App.2d 766, 769.) Fourth, as to the sham pleading doctrine, the Court finds that defendant's request to strike "any allegation that contradicts" the allegations in plaintiff's complaint is improper under California Rules of Court, rule 3.1322(a). (See Notice of Motion, p. 2.) Finally, as to the request for attorney's fees, defendant has not established that the Court must strike plaintiff's request for attorney's fees because the FAC does not allege legal entitlement to such fees. (See generally *Bauguess v. Paine* (1978) 22 Cal.3d 626, 634.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.